

The Insurance (Procedure for Holding Inquiry by Adjudicating Officer) Rules, 2016

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The Insurance (Procedure for Holding Inquiry by Adjudicating Officer) Rules, 2016

UNION OF INDIA

India

The Insurance (Procedure for Holding Inquiry by Adjudicating Officer) Rules, 2016

Rule THE-INSURANCE-PROCEDURE-FOR-HOLDING-INQUIRY-BY-ADJUDICATING-OFFICER-RULES-2016 of 2016

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The Insurance (Procedure for Holding Inquiry by Adjudicating Officer) Rules, 2016

Published vide Notification No. G.S.R. 178(E), dated 17th February, 2016

Ministry of Finance

(Department of Financial Services)

G.S.R. 178(E). - In exercise of the powers conferred by clause (1a) of sub-section (2) of section 114 of the Insurance Act, 1938 (

4 of 1938

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Insurance (Procedure for Holding Inquiry by Adjudicating Officer) Rules, 2016.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Insurance Act, 1938 (

4 of 1938

);

(b)

"adjudicating officer" means the officer appointed by the Authority as adjudicating officer under sub-section (1) of section 105 C of the Act;

(c)

"Authority" means the Insurance Regulatory and Development Authority of India established under sub-section (1) of section 3 of the Insurance Regulatory and Development Authority Act, 1999 (

41 of 1999

);

(d)

"Inquiry" means the inquiry referred in section 105C of the Act;

(e)

"section" means section of the Act;

(f)

all other words and expressions used in these rules but not defined and defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Inquiry by adjudicating officer.

- For the purposes specified in sub-section (1) of section 105 C and in these rules, the adjudicating officer shall hold inquiry under these rules in the manner specified in rule 4.

4.

Manner of holding inquiry.

(1)

For the purposes of holding inquiry as to whether any person has committed contraventions as specified in sub-section (2) of section 2CB or sub-section (4) of section 34B or sub-section (3) of section 40 or sub-section (2) of section 41 or sub-sections (4) and (5) of section 42 or sub-sections (8) and (9) of section 42D or section 52F or section 105B of the Act, the adjudicating officer shall, in the first instance, issue a notice to such person requiring him to show cause within such period as may be specified in the notice (being not less than fourteen days from the date of service thereof) as to why such an inquiry should not be held against him.

(2)

Every notice issued to a person under sub-rule (1) shall indicate the nature of offence alleged to have been committed by him and shall be served on him in the following manner, namely:-

(a)

by delivering or tendering it to that person or his duly authorised representative; or

(b)

by sending it to the person by registered post with acknowledgement due,-

(i)

to the address of his place of residence or his last known place of residence or the place where he carried on, or last carried on, business or personally works, or last worked, for gain;

(ii)

to the address of the registered office of the insurer or insurance agent or intermediary as contained in the records of the Authority; or

(c)

where it cannot be served under clause (a) or (b), by affixing it on the outer door or some other conspicuous part of the premises in which that person resides or is known to have last resided, or carried on business or personally works or last worked for gain and the written report thereof shall be witnessed by two persons.

(3)

After considering the cause, if any, shown by the person to whom show cause notice is issued under sub-rule (1), if the adjudicating officer is of the opinion that an inquiry should be held, he shall issue a notice fixing a date for the appearance of that person either personally or through his authorised representative:

Provided that while holding such inquiry, the adjudicating officer shall have power to summon and enforce the attendance of any person acquainted with the facts and circumstances of the case to give evidence or to produce any document which, in the opinion of the adjudicating officer, may be useful for or relevant to the subject matter of the inquiry.

(4)

On the date fixed, the adjudicating officer shall explain to the person proceeded against or his authorised representative, the offence alleged to have been committed by such person indicating the provisions of the Act or the rules in respect of which contravention is alleged to have taken place.

(5)

The adjudicating officer shall then give an opportunity to such person to produce documents or evidence as he may consider relevant to the inquiry and if necessary, the hearing may be adjourned to a future date and in taking such evidence, the adjudicating officer shall not be bound to observe the provisions of the Evidence Act, 1872 (11 of 1872).

(6)

If any person fails, neglects or refuses to appear before the adjudicating officer as required by sub-rule (3), the adjudicating officer may proceed with the inquiry in the absence of such person after recording the reasons for doing so.

5.

Report of adjudicating officer.

(1)

The adjudicating officer shall, after taking into account all relevant facts and the submissions made by the person, submit his inquiry report to the Authority.

(2)

Where after taking into consideration the evidence produced before him the adjudicating officer is satisfied that the person has failed to comply with or contravened the provisions of any of the sections specified in sub-section (1) of section 105C, he may recommend such penalty in his inquiry report, as he thinks fit, in accordance with the provisions of any of those sections specified in sub-section (1) thereof.

(3)

While recommending the quantum of penalty under section 105 C, the adjudicating officer shall have due regard to the factors specified in section 105D.

(4)

Every inquiry report submitted by the adjudicating officer shall specify the provisions of the Act in respect of which default has taken place along with reasons for recommending the penalty.

(5)

Every such inquiry report shall be dated and signed by the adjudicating officer and forwarded to the Authority.

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